

CV-24-008960 RODRIGUEZ, OSCAR vs CUPCAKE BOUTIQUE LLC – Defendant’s Motion to Compel Further Responses to Request for Production, Set One – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds that Plaintiff served deficient responses to Defendant’s Requests for Production Set One, Nos. 1-10. Notably, said responses were not verified and contained unsupported general and boilerplate objections not tied with sufficient particularity to the individual requests or to identifiable documents. (Code of Civ. Proc., § 2031.250 (a) ; Food 4 Less Supermarkets, Inc. v. Superior Court (1995) 40 Cal.App.4th 651; Code of Civil Proc. 2031.240(b)(2). Plaintiff’s responses were provided without an index identifying which Bates pages responded to which request which Code of Civ. Proc., § 2031.280(a) requires. Plaintiff also expressly stipulated to provide a production index identifying, by Bates range, the request or requests to which each document or category responded yet failed to do so. Plaintiff also asserted attorney client and work product privilege but failed to support said objections with a privilege log to permit the Court to evaluate the claim. The purpose of a “privilege log” in discovery proceedings is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production and is intended to permit a judicial evaluation of the claim of privilege. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181). (See also Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116). Additionally, the parties’ written stipulation expressly required a section 2031.240(c)-compliant privilege log for any responsive document withheld on those grounds. It also required a section 2031.230-compliant statement if Plaintiff contended that responsive documents did not exist or were not within Plaintiff’s possession, custody, or control. Plaintiff met neither of these requirements As to Request for Production No.6, financial documents are not categorically outside the scope of discovery. The scope of discovery is broad, though personal financial information is subject to some degree of constitutional protection. (Code of Civil Procedure. § 2017.010; Article I, section 1 of the California Constitution). The court makes its determination as to disclosure based on the threshold relevance requirement and by balancing the needs of the propounding party as against the needs of the responding party. Protective orders may be issued to support the responding party’s privacy rights as applicable. Furthermore, where financial information goes to the heart of the case, or is a critical component thereof, as here, where Defendant contends that they paid Plaintiff sums of money for work Plaintiff did not undertake the requesting party has a greater need for access to that information and the court abuses its discretion in refusing to compel discovery under such circumstances. (Rawnsley v. Superior Court (1986) 183 Cal.App.3d 86). The separate statement also identifies the following concrete deficiencies which are unchallenged: Requests Nos. 1 and 2: Defendant contends the production contains only limited communications and incomplete or cropped text-message screenshots. Requests Nos. 3 and 5: Plaintiff allegedly produced no communications or documents involving governmental officials, and the response to Request No. 3 appears to repeat the language of Request No. 1 rather than address the actual request. Request No. 4: Plaintiff agreed to produce licensing and business records but allegedly produced none. Defendant asserts that licensure and the identity of the contracting entity are disputed. Request No. 6: Plaintiff agreed to produce documents showing funds received but did not fully address requested records showing disbursement or allocation of those funds. Request No. 7: Defendant identifies allegedly missing plans, daily logs, schedules, progress reports, job-site photographs, and completion records Request No. 8: Defendant identifies an alleged discrepancy between the pleaded change-order amount, the statement of account, and the invoices produced, and contends no signed or acknowledged change orders were produced. Requests Nos. 9 and 10: Defendant states the production lacks third-party supplier, rental, subcontractor, labor-payment, and related records Accordingly, within ten (10) calendar days after service of notice of entry of this order, Plaintiff Oscar Rodriguez dba Pacific Construction Concepts shall: Serve verified, code-compliant further responses to Defendant’s Requests for Production, Set One, Nos. 1 through 10, without unsupported general or boilerplate objections; Produce all nonprivileged responsive documents within Plaintiff’s possession, custody, or control; Identify each produced document or category of documents by Bates numbers to the specific request number or numbers to which it responds; Serve a privilege log complying with Code of Civil Procedure section 2031.240(c) for any responsive material withheld based on attorney-client privilege or attorney work product; and Serve a response complying with Code of Civil Procedure section 2031.230 for any request as to which Plaintiff represents an inability to comply. Defendant’s request for monetary sanctions is GRANTED IN PART. Plaintiff Oscar Rodriguez dba Pacific Construction Concepts and Plaintiff’s counsel, Tyler A. Kelly, are ordered, jointly and severally, to pay monetary sanctions of \$3,060.00 to Defendant, through defense counsel, within 30 calendar days after service of notice of entry of this order for Defendant’s reasonable attorney’s fees and costs incurred in filing prosecuting this motion. (Civ. Proc. Code § 2033. 030 (a)). The \$3,060.00 is calculated as follows: \$1,200.00 for 3 hours to prepare the meet and confer letter; \$600.00 for 1.5 hours in negotiating and preparing the stipulation; \$1,200.00 for 3 hours preparing the motion; and \$60.00 in filing fees. Defendant shall submit a Proposed Order

that complies with the Court's ruling no later than September 8, 2026.

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Plaintiff's responses were provided without an index identifying which Bates pages responded to which request which Code of Civ. Proc., § 2031.280(a) requires. Plaintiff also expressly stipulated to provide a production index identifying, by Bates range, the request or requests to which each document or category responded yet failed to do so.

Plaintiff also asserted attorney client and work product privilege but failed to support said objections with a privilege log to permit the Court to evaluate the claim. The purpose of a "privilege log" in discovery proceedings is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production and is intended to permit a judicial evaluation of the claim of privilege. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181). (See also Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116). Additionally, the parties' written stipulation expressly required a section 2031.240(c)-compliant privilege log for any responsive document withheld on those grounds. It also required a section 2031.230-compliant statement if Plaintiff contended that responsive documents did not exist or were not within Plaintiff's possession, custody, or control. Plaintiff met neither of these requirements

As to Request for Production No.6, financial documents are not categorically outside the scope of discovery. The scope of discovery is broad, though personal financial information is subject to some degree of constitutional protection. (Code of Civil Procedure, § 2017.010; Article I, section 1 of the California Constitution). The court makes its determination as to disclosure based on the threshold relevance requirement and by balancing the needs of the propounding party as against the needs of the responding party. Protective orders may be issued to support the responding party's privacy rights as applicable. Furthermore, where financial information goes to the heart of the case, or is a critical component thereof, as here, where Defendant contends that they paid Plaintiff sums of money for work Plaintiff did not undertake the requesting party has a greater need for access to that information and the court abuses its discretion in refusing to compel discovery under such circumstances. (Rawnsley v. Superior Court (1986) 183 Cal.App.3d 86).

The separate statement also identifies the following concrete deficiencies which are unchallenged:

Requests Nos. 1 and 2: Defendant contends the production contains only limited communications and incomplete or cropped text-message screenshots.

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Requests Nos. 9 and 10: Defendant states the production lacks third-party supplier, rental, subcontractor, labor-payment, and related records

Accordingly, within ten (10) calendar days after service of notice of entry of this order, Plaintiff Oscar Rodriguez dba Pacific Construction Concepts shall:

Serve verified, code-compliant further responses to Defendant's Requests for Production, Set One, Nos. 1 through 10, without unsupported general or boilerplate objections;

Produce all nonprivileged responsive documents within Plaintiff's possession, custody, or control;

Identify each produced document or category of documents by Bates numbers to the specific request number or numbers to which it responds;

Serve a privilege log complying with Code of Civil Procedure section 2031.240(c) for any responsive material withheld based on attorney-client privilege or attorney work product; and

Serve a response complying with Code of Civil Procedure section 2031.230 for any request as to which Plaintiff represents an inability to comply.

Defendant's request for monetary sanctions is GRANTED IN PART. Plaintiff Oscar Rodriguez dba Pacific Construction Concepts and Plaintiff's counsel, Tyler A. Kelly, are ordered, jointly and severally, to pay monetary sanctions of \$3,060.00 to Defendant, through defense counsel, within 30 calendar days after service of notice of entry of this order for Defendant's reasonable attorney's fees and costs incurred in filing prosecuting this motion. (Civ. Proc. Code § 2033.030 (a)). The \$3,060.00 is calculated as follows: \$1,200.00 for 3 hours to prepare the meet and confer letter; \$600.00 for 1.5 hours in negotiating and preparing the stipulation; \$1,200.00 for 3 hours preparing the motion; and \$60.00 in filing fees.

Defendant shall submit a Proposed Order that complies with the Court's ruling no later than September 8, 2026.